

Contentious Chamber

Decision on the merits 169/2024 of December 19, 2024

File number: DOS-2020-01234

Subject: Complaint regarding the inability to respond to the complainant's access request due to the deletion of personal data relating to the complainant

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, President, and Messrs. Christophe Boeraeve and Dirk Van Der Kelen, Members;
Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant"

The defendant: Y, represented by Master Edwin JACOBS and Master Jolien CLEMENS, hereinafter referred to as "the defendant"

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024.

In accordance with Article 56 of the Law of December 25, 2023, it applies only to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

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I. Facts and Procedure

1. On April 3, 2020, the complainant filed a complaint with the Data Protection Authority against the defendant.
2. The subject of the complaint concerns a request for access and a request for deletion, the former having been rendered impossible by the implementation of the latter.
3. On February 26 and 27, 2020, as well as on March 6 and 9, 2020, the complainant reported to the defendant unsolicited phone calls received between Wednesday, February 18, 2020, and Monday, March 9, 2020, despite having previously exercised his right to object by registering on a "Do Not Call" list. The complainant identifies in his email the calling phone number. Furthermore, the complainant requests the defendant (i) the manner in which it obtained personal data concerning him, as well as (ii) the deletion of such data. The complainant specifies that the response to his first question must be provided before satisfying the second. These requests received no response.
4. On July 15, 2020, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.
5. On August 6, 2020, in accordance with Article 96, § 1 of the LCA, the Contentious Chamber's request to conduct an investigation was forwarded to the Inspection Service, along with the complaint and the inventory of documents.
6. On September 14, 2020, the defendant registered the complainant's deletion request after the

Inspection Service had contacted her. She then became aware of numerous technical issues regarding her email addresses, which had prevented her from receiving certain emails at her email address "email address." According to her, these issues arose from the migration of their old mailboxes to their new ones, which occurred as part of her name change.

7. On September 30, 2020, the investigation by the Inspection Service was concluded, the report was attached to the file, and it was transmitted by the General Inspector to the President of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).

The report contains findings related to the subject of the complaint and concludes that:

1. The defendant failed to comply with Articles 12.1, 12.2, 12.3, 12.4, 15, 17, and 21.3 of the GDPR in that it does not demonstrate having informed the complainant in an effective and transparent manner regarding his right to deletion and has not facilitated the exercise of the rights of the data subjects referred to in Articles 15 to 22 of the GDPR, in that it does not demonstrate having respected the complainant's right of access, and finally, in that it does not...

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demonstrates that the defendant did not respect the complainant's right to object, given that the latter continued to receive telephone calls from the defendant despite exercising this same right.

The report also contains findings that exceed the scope of the complaint. The Inspection Service finds, in broad terms, that:

2. The defendant has failed to comply with Articles 12.1, 13.1, 13.2, 14.1, and 14.2 of the GDPR in that the privacy policy presented on its website does not provide all the information required under the principle of transparency, considering that the information contained therein is incorrect, incomplete, and/or too lengthy to be sufficiently clear for the data subjects;

3. The defendant has failed to comply with Articles 4, 11), 6.1, a), 7.1, and 7.3 of the GDPR, in that it did not obtain prior consent for the use of cookies and furthermore did not inform the complainant about the possibility of withdrawing consent;

4. The defendant has not failed to comply with Article 30.1 and 30.3 of the GDPR in that "the register of processing activities of the RT that was provided to the Inspection Service (document 15) meets the aforementioned minimum requirements."

The report also includes additional contextual considerations, as follows:

5. The processing of personal data is carried out on a large scale given the significant position held by the defendant in its economic sector;

6. The nature of the violations identified is serious, considering that the findings listed previously significantly harm the objectives set out in Article 1.2 of the GDPR, in contradiction to the promises regarding privacy protection made by the defendant.

8.

On May 11, 2023, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case may be examined on the merits.

9.

On the same date, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

2 Investigation report, p. 19.

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10.

The parties are invited to defend themselves regarding the following findings and grievances retained by the Contentious Chamber:

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Violation of Article 12, paragraphs 1, 2, 3, and 4 and Article 15 of the GDPR on the grounds that: the defendant does not demonstrate that it has respected the complainant's right of access, has provided a reasoned response to the request in accordance with Article 12, paragraphs 3 and 4 of the GDPR, and has facilitated the exercise of the complainant's rights, in accordance with Article 12, paragraphs 1, 2, and 3 of the GDPR;

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Alleged violation of Article 31 of the GDPR (cooperation with the supervisory authority) on the grounds that: by first responding to the complainant's request for erasure, the defendant has ipso facto deprived the complainant of their right of access; insofar as the defendant initiated the erasure request after contact was made by the Inspection Service of the APD, the defendant appears to have destroyed evidence, which has the effect, on the one hand, of compromising the preliminary investigation of the Inspection Service, and on the other hand, of preventing cooperation with the supervisory authority.

11.

On May 12, 2023, the complainant agrees to receive all communications related to the case electronically.

12.

On May 15, 2023, the defendant agrees to receive all communications related to the case electronically and expresses its intention to avail itself of the opportunity to be heard, in accordance with Article 98 of the LCA.

13.

On May 25, 2023, the defendant contests the chosen language of the proceedings and requests a copy of the file (Article 95, §2, 3° LCA). The defendant sends a reminder regarding this on June 13, 2023, in which it also requests an extension of the deadlines for conclusions by 5 weeks. A copy of the file is transmitted to the defendant on July 4, 2024.

14.

On June 23, 2023, the Contentious Chamber receives the defendant's response conclusions regarding the findings related to the subject of the complaint. These conclusions also contain the defendant's reaction concerning elements of the case beyond the subject of the complaint. It is understood that the defendant has submitted summary conclusions, and its arguments are summarized in point 17 below.

3 In the context of its own assessment, the Contentious Chamber is free to retain any of the findings from the inspection to include in the list of grievances on which it requests the parties to defend themselves in the letter based on Article 98 of the aforementioned LCA. No other conclusion can be drawn from the abandonment of any grievance than the fact that the Contentious Chamber does not deem it appropriate to require the parties to conclude regarding them. It cannot be inferred that the Contentious Chamber confirms compliance with the GDPR on these aspects. Regarding this own assessment, the Contentious Chamber specifies that the LCA does not require it to resort to the Inspection Service. Indeed, the Contentious Chamber decides sovereignly whether, following the filing of a complaint, an investigation is necessary or not (Article 63, 2° of the LCA and Article 94, 1° of the LCA). In this sense, Article 94, 3° LCA explicitly provides that once seized, the Contentious Chamber may address the complaint without resorting to the Inspection Service. It thus has a power of assessment of the complaint that is independent of the inspection (Market Court (19th ch. A), December 7, 2022, 2022/AR/560 and 2022/AR/564; Market Court (19th ch. A), December 7, 2022, 2022/AR/556).

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15.

On June 27, 2023, the Contentious Chamber receives the reply conclusions from the complainant. The Contentious Chamber duly notes that the defendant indicated in its summary conclusions that the complainant did not submit any conclusions. However, in the interest of accessibility, the Contentious Chamber allows a wide latitude for complainants in their conclusions, which are not subject to the conditions set by the Judicial Code. Consequently, it accepts the observations made on that date by the complainant as conclusions. These can be summarized as follows:

- The complainant has never received confirmation from the defendant that his personal data has been deleted (Article 17 GDPR);
- The defendant is wrong to place the responsibility for the alleged breaches on its subcontractors, as it must ensure, as the data controller, compliance with data protection regulations by its subcontractors;
- Given the technical capabilities available to the defendant, it is not credible for the latter to hide behind IT problems, especially since the complainant insisted, during each call, that his data be

deleted;

- Contrary to the defendant's assertion, the complainant exercised his right of access in addition to his right to erasure – the complainant having requested that the defendant address the former before the latter.

16.

On July 4, 2023, the Contentious Chamber responds to the defendant regarding the language of procedure. The Contentious Chamber decides to maintain French as the language of procedure, without hindering the defendant's ability to conclude, communicate, or express itself in Dutch during the hearing. Furthermore, in light of the delay in transmitting the case file to the defendant, the Contentious Chamber agrees to extend the exchange of conclusions by five weeks. Thus, the new deadline for receiving the defendant's response conclusions is set for August 8, 2023, the deadline for the complainant's reply conclusions is set for August 29, 2023, and finally, the deadline for the defendant's reply conclusions is set for September 19, 2023.

17.

On September 19, 2023, the Contentious Chamber receives the summary conclusions from the defendant. These can be summarized as follows:

- By not presenting, in its invitation to conclude dated May 11, 2023, all the findings established by the Inspection Service and by presenting as an established finding by the Inspection Service a presumed violation of Article 31 GDPR when this does not emerge from the investigation report, the defendant is unable to accurately determine the elements on which it must defend itself;
- The Data Protection Authority has violated the principle of national cooperation (Article 52 of the LCA) as well as the principles of caution and legality by failing to verify the existence of an ongoing criminal and/or administrative procedure;
- The complaint should be dismissed as it primarily concerns the right to object to the processing of personal data for direct marketing purposes, for which the SPF Economy is primarily competent, the APD having only residual competence. This is further justified by the fact that this constitutes a ground for dismissal of the APD, and this has been illustrated in various decisions of the Contentious Chamber. Furthermore, the APD does not justify why it decides not to dismiss the present complaint;
- The Contentious Chamber must entirely dismiss the investigation report as the Inspection Service does not provide the appearance of impartiality in its investigation report, thus constituting a breach of the principle of good administration (Article 41.2 of the Charter of Fundamental Rights of the European Union, hereinafter "the Charter") as well as the principle of caution;
- Given the number of years the APD has taken to handle the case, it can only be concluded that there has been a breach of the principle of diligence and the right to good administration (Article 41.2 of the Charter);
- The defendant has not violated Article 12.3 of the GDPR as the IT problems it encountered during the migration of its old email addresses to the new one, coupled with the context of the Covid-19 crisis, prevented it from receiving the complainant's requests. Consequently, it considers that the dates of the complainant's rights exercise requests could not be regarded as the starting point for calculating the deadline set by Article 12.3, given that these requests did not reach any of its official communication channels. It claims to have become aware of the aforementioned requests only on September 1, 2020, and proceeded to delete the complainant's data on September 15, 2020. In any case, it notes that human and technical errors can occur;
- It has not violated Article 17 of the GDPR in that it has indeed deleted the complainant's personal data, and the reason the latter did not receive any confirmation in this regard is that the execution of his erasure request precisely deleted his email address, making it impossible to inform him.

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It is not possible to accept a request for access (Article 15 GDPR) from the complainant, as it appears from the case files and the complainant's complaint form that the true request was for the deletion of his personal data;

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It complies with Articles 5.2 and 24, as well as Article 25.1 of the GDPR in that it has implemented,

regarding the right to object, the centralization of the list of all clients who have exercised their right to object without having registered on the "Do Not Call" list (the two lists being intended to be merged in order to best ensure the effectiveness of the right to object) and an internal system that does not allow sales agents to call phone numbers listed on the prospect lists, and that, regarding the right of access, it provides in accordance with the law an overview of the personal data processed as well as a copy of that same data upon request;

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It has acted in compliance with Article 31 of the GDPR as it responded to the questions posed by the Inspection Service and provided the requested documents "in a complete, detailed, and transparent manner." Furthermore, it did not delete personal data in order to destroy evidence, but to comply with the complainant's request for data deletion made on February 26, 2020;

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Finally, it requests that the decision not be published on the website of the Data Protection Authority (DPA), or at least that it be published in an anonymized form.

18.

On April 18, 2024, the parties are informed that the hearing will take place on May 31, 2024.

19.

On May 31, 2024, the parties are heard by the Contentious Chamber.

20. On June 12, 2024, the minutes of the hearing are submitted to the parties.

21.

The Contentious Chamber receives no comments regarding the minutes.

II. Motivation

II.1. Procedure

22.

Rights of the defense (Article 6 of the ECHR and Article 47, para. 2 of the Charter) and the principle of good administration (Article 41 of the Charter) – The defendant asserts that the DPA violated its rights of defense, which are based on Article 6 of the ECHR and Article 47, §2 of the Charter, as well as the principle of good administration referred to in Article 41 of the same Charter, in that the DPA did not clarify the grievances against which it was invited to defend itself. The letter of May 11, 2023, by which the Contentious Chamber invited the parties to conclude, presented the findings made by the Inspection Service in this case as follows:

"Considering the case files, the Inspection Service found that the defendant violated various provisions of the GDPR for the following reasons:

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Violation of Article 12, paragraphs 1, 2, 3, and 4 and Article 15 of the GDPR on the grounds that: the defendant does not demonstrate that it has respected the complainant's right of access, has provided a reasoned response to his request in accordance with Article 12, paragraphs 3 and 4 of the GDPR, and has facilitated the exercise of his rights, in accordance with Article 12, paragraphs 1, 2, and 3 of the GDPR;

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Alleged violation of Article 31 of the GDPR (cooperation with the supervisory authority) on the grounds that: by first responding to the complainant's request for deletion, the defendant has ipso facto deprived the latter of his right of access; to the extent that the defendant initiated the deletion request after the Inspection Service of the DPA made contact, the defendant appears to have destroyed evidence, which has the effect, on the one hand, of compromising the preliminary investigation of the Inspection Service, and on the other hand, of preventing cooperation with the supervisory authority."

23.

The defendant notes that the first violation cited in the aforementioned letter only reiterates the first conclusion present in the investigation report (which is, moreover, the only conclusion that falls within the scope of the complaint).

24.

Furthermore, it states that the second violation, although presented as a finding from the investigation report, does not appear in it at all.

25.

For these reasons, the defendant concludes that it does not precisely know the shortcomings against which it is expected to defend itself.

26.

The Contentious Chamber acknowledges the incomplete presentation of the violations found – or not – by the Inspection Service, and therefore decides to restrict the examination of the merits to Articles 12.1, 12.2, 12.4, and 15 of the GDPR, regarding which the defendant has been able to conclude in strict compliance with its rights of defense.

27.

Verification of the existence of pending administrative and/or criminal proceedings (Article 52 LCA and principles of diligence and legality) – The defendant considers that it is the responsibility of the Data Protection Authority to verify whether or not there are pending administrative and/or criminal proceedings, which in this case has not been sufficiently done, particularly in light of the email of March 6, 2020, in which the complainant shares his intention to file a complaint with the King's Prosecutor.

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28.

On one hand, the defendant considers that the adage "the criminal holds the civil in suspense" applies to administrative authorities, such as the APD, so that the latter should suspend its procedure until the conclusion of the criminal proceedings, if applicable. It relies on the case law of the Court of Cassation, the Council of State, and the Court of Markets for this purpose. Furthermore, it cites decisions from the Contentious Chamber in which the latter would have recognized the application of the aforementioned adage in the exercise of its own powers. Additionally, the defendant claims that by not verifying the existence of parallel criminal proceedings, the APD fails to respect the principle of legality in that it does not fulfill its duty of cooperation arising from Article 52 of the LCA, which states the following: "§ 1. The Data Protection Authority carries out its missions in a spirit of dialogue and consultation with all public and private actors concerned by the policy of protecting the freedoms and fundamental rights of individuals regarding the processing and free flow of personal data as well as by the policy of consumer protection.

The Data Protection Authority may be assisted by or act at the request of other public authorities responsible for compliance with other legislations.

§ 2. The Data Protection Authority may conduct a broad investigation or public consultation or a more targeted investigation or consultation with representatives of the sectors concerned."

29.

On the other hand, the defendant alleges that the APD has failed in its duty of cooperation and the principle of caution by not verifying whether the complainant, in accordance with what he declared, has indeed filed a complaint with the SPF Economy, and if, where applicable, an investigation has been opened within the SPF Economy.

30. The Contentious Chamber notes that Article 77 allows any concerned person to file a complaint with the supervisory authority of their choice if they believe that their rights under the GDPR have been violated, and this "Without prejudice to any administrative or judicial remedy [...]"

31.

Article 79 of the same Regulation allows any concerned person to bring an action before a court if they believe that their rights derived from the GDPR have been violated, and this "Without prejudice to any administrative or extrajudicial remedy available to them, including the right to lodge a complaint with a supervisory authority under Article 77 [...]"

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32.

The Court of Justice of the European Union specifies in this regard that the remedies provided for in the two aforementioned provisions can be exercised concurrently and independently.

33. Thus, in the judgment Schufa Holding AG, the Court states that "the complaint procedure, which is not akin to that of a petition, is designed as a mechanism capable of effectively safeguarding the rights and interests of the concerned individuals." The Court thus emphasizes the essential and autonomous

nature of the remedies provided by the GDPR.

34. Furthermore, in the case *Fashion ID*, the Court recalled that supervisory authorities must carry out their missions in complete independence. In the judgment *Wirtschaftsakademie Schleswig-Holstein*, the Court had previously emphasized that supervisory authorities must be able to exercise their intervention powers effectively and efficiently.

35. In its judgment *Shrems II*, the Court states that even the existence of an adequacy decision from the European Commission cannot prevent a supervisory authority from examining a complaint from a concerned individual and verifying whether the transfer of their personal data to a third country complies with the requirements set by the GDPR.

36. In light of the above, it is not the responsibility of the Data Protection Authority to verify the potential existence of parallel proceedings.

37.

It is therefore up to the parties to provide evidence of the existence of ongoing parallel proceedings if they deem it necessary.

38. The residual competence of the APD regarding unsolicited telephone calls and the policy of non-prosecution – The defendant considers that the present complaint should have – and still must – be subject to a non-prosecution decision in light of Article 100, §1, 1° of the LCA as well as the non-prosecution policy of the Contentious Chamber (criterion B. 3).

39. It is indeed based on the fact that in matters of unsolicited telephone calls, the APD only has residual competence – the SPF Economy being primarily competent under Article VI.111 of the Economic Law Code. Moreover, the defendant notably points to the decision of the Contentious Chamber of February 24, 2021, in which the latter dismissed a complaint whose facts would be, according to the defendant, very similar.

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similar to those of the present case, in which the primary jurisdiction of the SPF Economy is recognized "in matters of spam and unsolicited telephone calls [...]"¹¹.

40. Furthermore, the defendant emphasizes that, as indicated by the non-prosecution policy of the Contentious Chamber, complaints that are subject to ongoing judicial or administrative proceedings are not among its priorities. By adopting a decision that diverges from those made in previous similar cases where the Contentious Chamber decided to dismiss the complaint, the defendant argues that the Contentious Chamber must justify its choice in the present decision.

41.

Finally, the fact that none of the grievances directed against the defendant have a significant societal and/or personal impact, as well as the fact that delays in processing the present case seem to indicate that the current procedure is not effective, demonstrate, according to the defendant, that there are still sufficient grounds to proceed with the dismissal of the complaint.

42.

If the Contentious Chamber acknowledges that the SPF Economy indeed has jurisdiction over unsolicited telephone calls or emails under Articles VI.110 et seq. of the Economic Law Code, it does not exclude its own competences in this matter.

43. In fact, under Article 4, § 1 of the LCA, the APD is responsible for monitoring compliance with the fundamental principles of data protection, as affirmed by the GDPR and other laws containing provisions related to the protection of personal data processing.

44. This competence derives directly from Article 51 of the GDPR, which stipulates that each Member State must have one or more independent public authorities responsible for overseeing the application of the regulation.

45. In its decision 11/2022 (points 22 and following), the Contentious Chamber established that when it comes to the processing of personal data, the competence of the APD cannot be limited.

46. Consequently, in the present case, the APD fully retains its competences to address aspects related to the protection of personal data, such as the deletion of data concerning the individual or ordering a data controller to respect the right of objection of a concerned individual. These competences are not merely complementary but are exercised independently and in parallel to those of the SPF Economy.

11 Decision of the Contentious Chamber 28/2021 of February 24, 2021, point 4.

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47.

Furthermore, the Contentious Chamber notes that the present facts, although initiated by unsolicited telephone calls, go beyond this sole framework as the complainant has exercised his right of access, for which the complainant alleges a lack of response.

48. Moreover, the Contentious Chamber emphasizes that the non-prosecution policy distinguishes several grounds for dismissal, which are divided between those of a technical nature and those of an opportunistic nature. The latter, among which is the reason B.3 that concerns the present case, must be subject to a balance between the general criteria of significant societal and/or personal impact and the criteria of efficiency. This examination is conducted on a case-by-case basis and may yield variable responses despite apparent similarities between different cases. This is all the more true as, in the context of this balancing act, the Contentious Chamber is led to consider the means at its disposal to address a case.

49. In any event, although the non-prosecution policy has been established based on the practices and material context of the Contentious Chamber, thus reflecting a certain reality, and has been published on the APD's website for transparency purposes, it nonetheless does not have any binding character. Therefore, the Contentious Chamber should not in any way justify the choice not to dismiss a complaint.

50. The right to good administration (art. 41.2 of the Charter and principle of caution) – The defendant claims that the investigation report issued by the Inspection Service shows bias, or at least gives that appearance, and that it was conducted with negligence.

51.

She indeed recalls at the outset that the principle of impartiality applies not only to any administrative authority but also to its members, including the inspectors of the Inspection Service.

52.

Next, the defendant argues that the Inspection Service did not verify the existence of ongoing parallel proceedings, that it did not conduct an exculpatory investigation, and that it made subjective and unfounded statements in its investigation report.

53. Finally, the defendant states that the Inspection Service ignored one of the questions posed to it by the Contentious Chamber regarding the evidence related to the telephone calls that the complainant allegedly received, as well as the origin of those same calls. She believes that the Inspection Service should have, at the very least, contacted the complainant's telephone operator to obtain a record of the telephone calls that the complainant received, despite the latter having told the Inspection Service that he could not obtain this record himself. This also demonstrates, according to the defendant, that the Inspection Service did not conduct its investigation exculpatory. Furthermore, the defendant believes that the Contentious Chamber adopts a behavior

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contradictory in that it now considers it has sufficient evidence to allow for the substantive handling of this case, even though it has not received a response to one of the questions it posed to the Inspection Service, which clearly demonstrated that the Contentious Chamber was not in a position to address the present complaint on the merits.

54. In this regard, the Contentious Chamber emphasizes that procedural guarantees must be fully respected and if there had been a risk that the defendant was disadvantaged by the manner in which the investigation report was conducted, that disadvantage has been completely eliminated thereafter, which excludes any violation of the principles of good administration. The procedural elements raised by the defendant do not result in a violation of the rights of the defense, as the defendant had the opportunity to present its arguments in full through its conclusions and was also able to fully exercise its right to contradiction during the hearing of the Contentious Chamber. The defendant therefore suffered no prejudice and its rights of defense were thus properly respected.

55. It should be recalled that decisions of the Contentious Chamber are subject to appeal before the Market Court, in accordance with Article 108, § 2 of the LCA. This provision states that: "An appeal

may be lodged against the decisions of the Contentious Chamber under Articles 71 and 90 before the Market Court, which handles the case according to the procedures of summary proceedings in accordance with Articles 1035 to 1038, 1040 and 1041 of the Judicial Code."

56. This appeal mechanism ensures judicial review of the decisions of the APD. The Market Court, as a judicial authority, examines the decisions of the APD within the framework of its full jurisdiction, allowing for a thorough examination both factually and legally.

57. It is important to note that this appeal system contributes to ensuring respect for the fundamental principles of good administration and the rights of defense throughout the procedure, from the initial administrative phase to any potential judicial phase.

58. Furthermore, the Contentious Chamber notes that the uncertainty regarding the phone calls received by the complainant does not affect the examination of the grievances addressed in this decision.

12 See in this regard Decision of the Contentious Chamber 18/2020 of April 28, 2020; Decision of the Contentious Chamber 71/2020 of October 30, 2020; Decision of the Contentious Chamber 133/2021 of December 2, 2021, and Decision of the Contentious Chamber 38/2023 of March 27, 2023.

13 Brussels Court of Appeal, Market Court Section, 19th Chamber A, Chamber of the Market Court, 2019/AR/741, June 12, 2019, p. 10.

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59. Duty of diligence and the right to good administration (Article 41 of the Charter) – The defendant notes that while the complaint was filed on April 3, 2020, and the investigation report was transmitted to the Contentious Chamber on September 30, 2020, the parties were invited to conclude on May 12, 2023.

60. It indeed considers that the inactivity of the Contentious Chamber for nearly three years constitutes a flagrant violation of the general legal principle of reasonable time, and consequently, of the duty of diligence.

61. Furthermore, the SPL should not have declared the complaint admissible, according to the defendant, given that it did not have, according to it, sufficient evidence.

62. Finally, the defendant emphasizes that the copy of the administrative file was transmitted to it more than a month after it made the request, despite two emails sent for this purpose.

63. The Contentious Chamber recalls that due to its limited resources, it must handle the complaints it receives efficiently. This efficiency, to which the Contentious Chamber is committed, guides it in processing its complaints and may result in processing times that are more or less lengthy. In any case, the processing time of the present case does not vitiate the matter and does not alter the examination of the alleged breaches.

64. Regarding the SPL, the Contentious Chamber recalls that at the time of the events, the LCA provided that the examination of the complaint was limited to the language in which it is drafted, the presence of a signature and a date, the presence of a "statement of facts and the necessary indications to identify the treatment to which it pertains," and that it "falls under the competence of the Data Protection Authority."

65. Finally, regarding the delay with which the copy of the file was transmitted to the defendant, the Contentious Chamber notes that it granted new deadlines for the exchange of conclusions, in accordance with the request submitted by the defendant.

II.2. Regarding the breach of Articles 12.1, 12.2, 12.4, and 15 of the GDPR

II.2.1. Regarding the modalities of the rights of the data subject

a) Position of the parties and the SI

66. According to its investigation report, the SI concludes that the defendant did not effectively and transparently inform the complainant of his right to erasure. The SI indeed considers the responses of the defendant to be vague, thus not allowing the complainant to have a clear view of the processing of his personal data. The SI mentions in this regard that following one of the emails through which the complainant exercised his right to erasure, the defendant responded that the

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the data in question could be retained for a maximum period of 10 years, without indicating the precise

moment of their deletion.

67.

Furthermore, the Supervisory Authority considers that the defendant has not demonstrated that it responded to the complainant's requests in a reasoned manner within the meaning of Articles 12.3 and 12.4 of the GDPR.

68. The defendant recalls the particular circumstances under which the complainant exercised his right to erasure. At the time the complainant exercised his right, the name of Y had changed. For this reason, the defendant created a new email address for its Data Protection Officer (DPO), without deleting the old one. Thus, both addresses coexisted until early 2020. However, the defendant states that while it was initially planned for all emails contained in the old email address to be migrated to the new one, a technical problem occurred. As a result, fewer emails than expected were brought to the defendant's attention. The context in which all this was carried out, namely the pandemic caused by Covid-19, did not alert the defendant to the low number of emails it was receiving at that time.

69. Moreover, the defendant adds that according to the guidelines of the European Data Protection Board (EDPB), the calculation of the period referred to in Article 12.3 of the GDPR begins when a request under Articles 15 to 22 of the GDPR reaches the official channels of a data controller. However, the defendant points out that due to the technical problem that occurred during the integration of the inbox of the old email address, the complainant's requests never reached it. It finally notes that it became aware of these requests only on September 1, 2020.

b) Assessment of the Disciplinary Chamber

70. The first four paragraphs of Article 12 of the GDPR provide as follows:

"1. The data controller takes appropriate measures to provide any information referred to in Articles 13 and 14 as well as to carry out any communication under Articles 15 to 22 and Article 34 regarding the processing to the data subject in a concise, transparent, understandable, and easily accessible manner, using clear and plain language, particularly for any information specifically addressed to a child. The information is provided in writing or by other means, including, where appropriate, electronically. When the data subject requests it, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller facilitates the exercise of the rights granted to the data subject under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the data controller does not refuse to comply with the request of the data subject to exercise the rights conferred on them by Articles 15 to 22, unless the data controller demonstrates that it is not in a position to identify the data subject.

3. The data controller provides the data subject with information on the measures taken in response to a request made under Articles 15 to 22, as soon as possible and in any event within one month of receiving the request. If necessary, this period may be extended by two months, taking into account the complexity and number of requests. The data controller informs the data subject of this extension and the reasons for the delay within one month of receiving the request. When the data subject submits their request in electronic form, the information is provided electronically where possible, unless the data subject requests otherwise.

4. If the data controller does not respond to the request made by the data subject, it shall inform the data subject without delay and at the latest within one month of receiving the request of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy."

71.

The Disciplinary Chamber notes that the defendant claims to have deleted the complainant's personal data – initially requested on February 26, 2020 – and to have informed him via an email dated September 18, 2020.

72.

In this regard, the Disciplinary Chamber agrees with the Supervisory Authority that the defendant's response of September 18, 2020, is not sufficiently transparent within the meaning of Article 12.1 of the GDPR. The response indeed mentions a maximum retention period of 10 years, in accordance with the law. It is thus not possible on this basis to determine more precisely the exact moment when the data will be deleted. Furthermore, the response uses the conditional and abstract terms, such as:

“By ‘non-essential information,’ we mean all data that can be deleted unless you are no longer a customer with us. [...]”. However, since this email was not sent to the complainant, there is no basis for finding a breach of Article 12.1 of the GDPR.

73.

Regarding the time frame within which the defendant addressed the complainant's request for erasure, the Disciplinary Chamber notes that it is not appropriate to examine this grievance in

14 It is the Disciplinary Chamber that emphasizes this.

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due to the incomplete presentation made in the letter inviting the parties to conclude (see point 26).

74.

Furthermore, the Contentious Chamber notes that the defendant deleted the personal data of the complainant before fulfilling the right exercised under Article 15 of the GDPR.

75.

In fact, the defendant did not facilitate the exercise of the complainant's rights in accordance with Article 12.2 of the GDPR, as it made the exercise of the right of access impossible.

76.

Moreover, the Contentious Chamber finds that the defendant did not inform the complainant of the reasons for its inaction regarding the access request that the complainant had made, as it should have done under Article 12.4 of the GDPR.

77.

Consequently, the Contentious Chamber finds that the defendant violated the following provisions: Article 12.2 of the GDPR by making the exercise of the complainant's right of access impossible, and Article 12.4 of the same Regulation by failing to inform the complainant of the reasons for its inaction within the time frame prescribed in the aforementioned provision.

II.2.2. Regarding the right of access

a. Position of the parties and the SI

78.

According to its investigation report, the SI concludes that the defendant violated Article 15 of the GDPR, given that this article provides neither exception nor limitation to the right of access in cases where the requested data has been deleted in accordance with Article 17 of the same Regulation.

79.

The defendant, on the other hand, argues that the actual request of the complainant consisted of the deletion of his data, supporting this position by the absence of mention of the complainant's access request in the complaint form. Therefore, the defendant concludes that by deleting the complainant's data, it complied with the complainant's true request.

80. The complainant contests the defendant's argument and asserts that his request was not limited to the deletion of his data. In this regard, he relies on several emails through which he exercised his right of access. He further notes that some of these emails are included in the inventory of the defendant's documents and that some are reproduced in the defendant's conclusions. He specifies that it appears from the defendant's conclusions that he had specifically requested that the defendant respond to his access request before proceeding with the deletion of his data.

b. Assessment of the Contentious Chamber

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81.

It appears from the case file that the complainant exercised his right of access on February 26, 2020, and made reminders on February 27, 2020, and March 6, 2020, explicitly stating that his access request should be addressed before the deletion request – the complainant having reaffirmed in his reply conclusions his desire to access the data listed in Article 15.1 of the GDPR.

82.

The Contentious Chamber recalls that the right of access has three components. First, under Article 15.1 of the GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed. Second, when personal data

is being processed, the data subject has the right to obtain access to the said personal data as well as to a series of information listed in Article 15.1 a) – h). Third, under Article 15.3 of the GDPR, the data subject also has the right to obtain a copy of the personal data undergoing processing. Finally, Article 15.4 states that the right to obtain a copy referred to in paragraph 3 of the same article shall not adversely affect the rights and freedoms of others.

83. In addition to Article 15.4 of the GDPR, Article 12.5 of the GDPR provides, as a limitation, that the data controller may refuse to comply with one of the requests referred to in Articles 15 to 22 of the GDPR or may require a reasonable fee when the request is manifestly unfounded or excessive. In this case, the data controller is required to demonstrate the manifestly unfounded or excessive nature of the request. Article 23 of the GDPR provides for the possibility for national legislators to derogate from the rights provided for in Articles 15 to 22.

84. The Contentious Chamber notes that the defendant did not invoke any of the aforementioned limitations.

85. The execution of the complainant's right to deletion cannot therefore be held as an exception to the complainant's right of access.

86. Consequently, the Contentious Chamber finds that the defendant violated Article 15 of the GDPR.

II.3. Regarding the breach related to Article 17 of the GDPR and its modalities

II.3.1. The position of the parties and the SI

87.

According to the investigation report, the SI concludes that the defendant did not inform the complainant as it should have done. It notes that although the defendant claims to have sent a confirmation email regarding the deletion of the complainant's data, it does not see the complainant's email address among the recipients of the email in question.

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88. The defendant states that she became aware of the plaintiff's request for erasure only on September 1, 2020. On September 15, 2020, she sent an email to the plaintiff regarding the follow-up to the erasure request. However, this email was sent in Dutch. The plaintiff, not understanding the language, requested that he be responded to in French. On September 18, 2020, the defendant then sent the same email, but this time in French. However, the plaintiff's email address was not among the recipients of the email, as it had been erased, in accordance with Article 17 of the GDPR.

89. Regarding the fact that she sent her first email to the plaintiff in Dutch, the defendant explains that she was under the impression that the plaintiff was Dutch-speaking, given that the Inspection Service had always communicated with her in Dutch.

II.3.2. Assessment of the Contentious Chamber

90. As stated in point 26, the Contentious Chamber decides not to examine this grievance in depth, as it is not included in the letter inviting the parties to conclude.

91. The Contentious Chamber recalls, as it did in point 70, that the data controller must inform the data subject of the measures taken following a request made under Articles 15 to 22 of the GDPR, and this within one month at the latest – unless exceptions apply. If the data controller were to refuse to comply with a request made under Articles 15 to 22 of the GDPR, they would then have to inform the data subject of the reasons for this refusal, also within one month at the latest.

92. The plaintiff exercised his right to erasure for the first time on February 26, 2020. The defendant erased the plaintiff's personal data in September 2020. However, she was unable to inform the plaintiff in French (but did so in Dutch).

93. The Contentious Chamber notes that the plaintiff's email address was not among the recipients of the email by which the defendant informed of the follow-up to the plaintiff's erasure request. In this regard, it should be emphasized that the defendant, by sending her first email to the plaintiff in Dutch, did not commit any fault. In the absence of indication regarding the plaintiff's linguistic affiliation, and given that the Inspection Service had always communicated with the defendant in Dutch, it could not reasonably be expected of the defendant to address her email to the plaintiff in a language other than Dutch.

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94. However, the Contentious Chamber considers that after the plaintiff responded that he did not understand Dutch, it was incumbent upon the defendant to resend an email to the plaintiff in French regarding the follow-up to the erasure request. The GDPR indeed does not provide any exception to the respect of Article 12.3 on the grounds that a data controller has complied with an erasure request. Since the defendant received the plaintiff's email informing her that he did not understand Dutch, she then had the plaintiff's email address. Therefore, she should have organized herself in such a way as to comply with the obligation imposed on her under Article 12.3 before erasing the plaintiff's personal data.

II.4. Regarding the breach of Article 31 of the GDPR

II.4.1. The position of the parties and the Inspection Service

95. The defendant indicates that she has not breached Article 31 of the GDPR. She first points out the absence of a definition of the term "cooperation" included in the aforementioned provision, whether in the GDPR or the LCA. In the absence of such a definition, the defendant at least relies on the doctrine defining this cooperation as an obligation for a data controller and/or a processor to comply with requests from a supervisory authority, which may consist of providing information or access to premises, information systems, and/or documentation.

96. In this regard, the defendant states that she has consistently responded to the questions posed to her by the Inspection Service and even indicated that she remains at the latter's disposal for any further questions.

97. Furthermore, the defendant explains that she could not be attributed any malicious intent in the erasure of the plaintiff's data. Firstly, she states that no element of the file allows for the conclusion that she destroyed evidence. While she admits to having erased the plaintiff's data during the present procedure, this was not done with the intention of destroying evidence. She states that this erasure was carried out in good faith, in order to respect the rights of the plaintiff, while noting that it was done under some pressure as an investigation was being conducted against her. Finally, as stated above, such accusations are unfounded as the defendant has shown herself to be open to providing additional answers.

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II.4.2. The Assessment of the Contentious Chamber

98. As stated in point 26, the Contentious Chamber decides not to examine this complaint due to the incomplete presentation made in the letter inviting the parties to conclude.

99. However, the Contentious Chamber simply recalls that under Article 31 of the GDPR, "The data controller and the processor, as well as, where applicable, their representatives, shall cooperate with the supervisory authority, at the request of the latter, in the performance of its tasks."

100. Although the GDPR does not precisely define what is meant by the term cooperation, the Contentious Chamber has already had the opportunity to decide that, among other things, failing to "comply with the exercise of the complainant's rights and inform the Contentious Chamber of the follow-up given to this decision"¹⁵, failing to "raise arguments against the injunction that had been given to it as permitted by Article 99 LCA"¹⁶, and failing to respond to an email from the Contentious Chamber informing it of the amount of the proposed administrative fine constitutes an attitude reflecting "a manifest lack of consideration and cooperation contrary to what is expected of a data controller, particularly in the application of Article 31 of the GDPR."¹⁷ More recently, the Contentious Chamber also decided that a data controller's failure to respond to letters—whether physical or electronic—from the SPL inviting it to a mediation procedure constitutes a breach of Article 31 of the GDPR¹⁸.

101. Thus, the Contentious Chamber considers—without this being construed as any position taken by it regarding the present facts—that the deliberate deletion of personal data by a data controller with the intent to negatively affect the investigation of the SI is contrary to the principle of cooperation established in Article 31 of the GDPR.

III. Corrective Measures and Sanctions

102. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;

3° pronounce a suspension of the ruling;

15 Decision of the Contentious Chamber 32/2020 of June 16, 2020, point 24.

16 Decision of the Contentious Chamber 32/2020 of June 16, 2020, point 25.

17 Decision of the Contentious Chamber 32/2020 of June 16, 2020, point 27; In this regard, see also Decision of the Contentious Chamber 87/2024 of June 3, 2024, points 74 to 87.

18 Decision of the Contentious Chamber 98/2024 of July 24, 2024, points 30 and following.

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In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be lodged, within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant.

Such an appeal may be introduced by means of an interlocutory application which must contain the information listed in Article 1034^{ter} of the Judicial Code¹⁹. The interlocutory application must be filed with the registry of the Market Court in accordance with Article 1034^{quinquies} of the Judicial Code²⁰, or via the e-Deposit information system of the Ministry of Justice (Article 32^{ter} of the Judicial Code).

(sé). Hielke HIJMANS

President of the Contentious Chamber

19 The application must include, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, and address of the applicant, as well as, where applicable, their title and national register number or business number;

3° the name, first name, address, and, where applicable, the title of the person to be summoned;

4° the subject and a brief summary of the grounds for the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer.

20 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.